



# United States Department of the Interior

## United States Department of the Interior

BUREAU OF LAND MANAGEMENT

National Interagency Fire Center

3833 S. Development Ave.

Boise, ID 83705



In Reply Refer to:  
FA-250

### LIMITED SOURCE JUSTIFICATION (LSJ) GSA BPA or order estimated over \$250,000

This document sets forth the justification and approval as required by FAR 8.405-6.

#### 1. Identification of the Agency and the Contracting Activity:

The Department of the Interior, Bureau of Land Management (BLM), National Interagency Fire Center, National Interagency Incident Communications Division (NIICD) requests the Branch of Business Practices, Contracting Office, to contract on a limited or sole source basis.

#### 2. Nature and/or description of the action being approved:

The action being sent for approval is the procurement of P25 compliant equipment on the GSA Contract GSA 47QTCA19D00DK. This procurement is undertaken to ensure continuity of operations by replacing equipment that has exceeded its functional service thresholds

#### 3. A description of the Supplies or Services required meeting the Agency's needs, including the estimated value:

BKR5000 Radio with Port, VHF 136-174MHz, 5000Ch, 6W,T3, Full keypad, BLK, Channel Stop, No BT. Includes GPS, belt clip, ADP encryption, and 36 month warranty.

Radio Accessories:

- o Antenna, VHF, 136-174MHz,SMA,W/GPS
- o Clamshell AA Battery Pack, Orange
- o Cable, Cloning, BKR Series Portable to BKR Series Portable Radios NIFC exclusive to detour theft
- o Heavy-Duty Remote Speaker/Microphone, 3.5mm Audio Jack, IP68 Submersible, Prog. Toggle Switch, Emergency Button

KNG Series Mobiles 2 ea. VHF and 1 ea. UHF -KNG Series Mobile Radio, Dash Mount, P25, Digital/Analog, 136-174MHz for VHF and 380-470 MHz for UHF, Integrated GPS, 5000 channels, 50W, Includes Dual

Remote-Control Port. Includes install kit, speaker & power cord.

- 3 ea. Handheld Programming Smart Microphone with straight connector (Standard) for KNG mobiles & base station series.
- 10 ea. Ethernet Interface, KNG-M/B

Estimated value: \$1,510,131.59

4. An identification of the statutory authority permitting other than full and open competition:

Select one of the following:

This justification is submitted pursuant to the authority of 41 U.S.C. 251 as implemented under the Multiple Award Schedule Program FAR 8.405-6 subsection:

\_\_\_\_ FAR 8.405-6(a)(1)(i)(A) An urgent and compelling need exists, and following the procedures would result in unacceptable delays

\_\_\_\_ FAR 8.405-6(a)(1)(i)(B) Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized

\_\_\_\_ FAR 8.405-6(a)(1)(i)(C) In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited-sources procedures

  X   FAR 8.405-6(b) Items peculiar to one manufacturer. An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer.

5. The authority and supporting rationale (see 8.405-6(a)(1)(i) and (b)(1) and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service. Name brand or equal

A. All radios that are intended to be used to support wildland fire activity must meet the requirements outlined in the Statement of Work and must be tested by NIICD for inclusion on the Approved Radio List that is located at:

[https://www.nifc.gov/sites/default/files/NIICD/docs/approved\\_radios.pdf](https://www.nifc.gov/sites/default/files/NIICD/docs/approved_radios.pdf)

B. No other radio has been tested and approved for fire use. Numerous radios have been tested but have failed for various reasons. One of the fire requirements is that the radio must have a AA

clam shell that can pass a 30" drop test; either the vendor does not support a AA clam shell or it failed the drop test. BK products are tested and approved by the DOI and the Forest Service for compatibility within the agency's radio system architecture for specific agency requirements and security beyond standard operational requirements.

C. NIICD support technicians have been trained on the testing and repair of BK radios. The support technician will be able to use the existing programming software for initial installation as well as common spare components, common troubleshooting methods, and common repair methods. D. While there are a number of manufacturer/model radio that have been approved for fire use, the BKR-5000 radio manufactured by BK Technologies is the only radio still being manufactured or supported by the Vendor. Based on this, BK Technologies is the only responsible source that can meet our requirements at this time. Current spare parts inventory is valued at over \$500,000.00.

- The KNG Series mobile radios two VHF units and one UHF unit consist of dash-mount, P25 digital/analog models operating in the 136–174 MHz (VHF) and 380–470 MHz (UHF) bands. Each unit includes integrated GPS, supports up to 5,000 channels, and provides 50W output power. These radios have been tested and approved by NIICD and will be employed for Radio Control over Internet Protocol (RCoIP). Their use is intended to support the evaluation of an RCoIP solution and associated resource-tracking capabilities for future remote radio console kits.

6. A determination by the ordering activity contracting officer that the order represents the best value consistent with 8.404(d).

Pricing has already been determined to be fair and reasonable per FAR 8.404(d). In consideration of the reasons identified in paragraph #5 the purchase of the BK radios to be in the government's best interest.

7. A description of the market research conducted among schedule holders and the results or a statement of the reason market research was not conducted.

The BK Technologies DHS TACCOM II and GSA contracts were reviewed, both offered the required radios at cost however the accessories varied slightly. Based on market research it is our intention to advertise the requirement against the GSA FSS contracts.

8. Any other facts supporting the justification.

BK Technologies previous contract holder under the mandatory DOI Field Com IDIQ contracts, the radio used in wildland fire support (BKR5000, KNG-M) and the supporting options were offered under the DOI contract. The contract option for supplies expired September 30, 2022 with the Department have not intention of re-establishing the supply portion of the IDIQ contract; as per DOI Mandatory Use of the DOI Field Communications Contract for Services and Design-Build and OMB Designated Best-in-Class Contracts Supporting Radio Communication Requirements memorandum dated April 19, 2023 the Department has advised the contracting community to use Best-in-Class contracting vehicles to procure the required communication needs. The BIC's include GSA and DHS TACCOM II contract, in review of the 2 contracting vehicles GSA appear to be the most economical choice for the government.

9. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

The government continues to review and test radios to for compatibility into the National Radio Program.

10. The ordering activity Contracting Officer's certification that the justification is accurate and complete to the best of the Contracting Officer's knowledge and belief and evidence that the supporting data that form a basis for the justification have been certified as complete and accurate by technical/program personnel.

I certify that the facts and representations under my cognizance, which are included in this justification and which form a basis for this justification, are complete and accurate.

(Signature)\_\_\_\_\_ (Date) \_\_\_\_\_

(Type or Print Name): Jason W Bruce\_\_\_\_\_  
**Contracting Officer's Representative**

I certify that the justification is accurate and complete to the best of my knowledge and belief:

(Signature)\_\_\_\_\_ (Date) \_\_\_\_\_

(Type or Print Name): \_\_\_\_\_  
**Contracting Officer**

**Reviewed/Concur/Approved by: (if applicable)** (Acquisitions estimated over \$250k and any proposed award of any non-competitive enterprise contract (defined here as a contract vehicle where orders or calls can be placed by or on behalf of multiple DOI bureaus, or which a mandatory source is for DOI))

(Signature) \_\_\_\_\_ (Date) \_\_\_\_\_

(Type or Print Name): \_\_\_\_\_

**Branch Chief, Business Practices, NIFC, Bureau of Land Management**

**Competition Advocate Review and Concurrence: (if applicable)** (Acquisitions estimated over \$750k and any proposed award of any non-competitive enterprise contract (defined here as a contract vehicle where orders or calls can be placed by or on behalf of multiple DOI bureaus, or which a mandatory source is for DOI))

(Signature) \_\_\_\_\_ (Date) \_\_\_\_\_

(Type or Print Name): \_\_\_\_\_

**Competition Advocate**